"In the following pages I offer nothing more than simple facts, plain arguments, and common sense."
THOMAS PAINE, 1776

Common Sense 250

CIVICS · OPINIONS · ETHICS

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LIBERTY & POLITICS

The Coming Draft, 2026

BY MARK STEWART GREENSTEIN

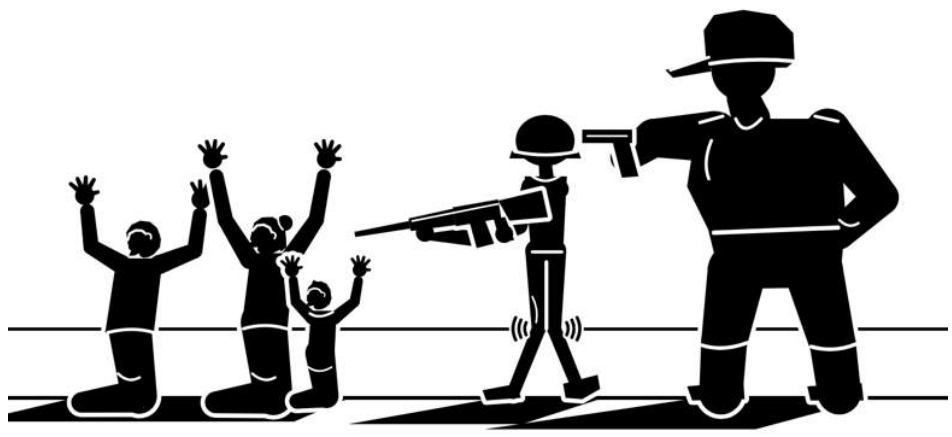
In less than four months, unless Congress effectively steps in, your 18- to 25-year-old sons and grandsons will be drafted into the Selective Service.

December 18 is the still-quiet date upon which our military becomes one step away from sending these young men overseas. Merry Christmas. Until this year, joining the Selective Service has been a voluntary act. Men were encouraged to register, and had some federal benefits denied if they chose not to, but come December 18 they have no choice. The government will use its data-gathering power to profile every 18- to 25-year-old male, possibly for combat. These young men are then one step away from compelled military service.

That is one decision by a suddenly emboldened NSA chief, one decision by a mercurial U.S. President, one decision to introduce ground forces into a stalemated war, or one joint decision by a collaboration of generals following an attack by a Third World dictator wanting to show his machismo against the mighty USA.

Please do not think "my son or grandson will be exempt." That is for the Selective Service to then decide. Come December 18, he is presumably in. The old categories that left many exempt — college, young father, autistic, overweight, flat feet — are not necessarily in play any longer.

Modern warfare, or even peacetime surveillance of our enemies and potential enemies, does not require physical fitness. A college student's brainpower can be harnessed by sending him to a bunker in Asia or a ship off the shores of the Persian Gulf. A high school dropout's ability to score highly at video games can be harnessed aboard a rarely surfacing submarine. The premise that a draft selects for the strong is a premise from a war we are no longer fighting.



The draft does not ask. Drawn for Common Sense 250 from the publisher's sketch.

THE COURT WAS WRONG

A draft is not constitutional. Its philosophical, but non-legal, basis is a collection of Supreme Court cases melded into one during the height of the First World War, called Arver v. United States. The reasoning by nine old men, none of whom were draft-eligible, is ludicrous. The Court's opinion invoked the compelled-to-service practices of nations it called "civilized" — including the Ottoman Empire, Austria-Hungary and Germany, against all of whom we were then fighting so that the world "be made safe for democracy."

The opinion asks for guidance from 950 years earlier, brings forth circular reasoning, and asserts without warrant the conditions at the time of the Constitution's framing. Perhaps the worst is Justice White's constitutional argument, that Congress has the power "for calling forth the militia."

Yes. Those would be state militias, including the men serving in them. Not raw conscripts. The men who served in militias were trained for and pledged to protect their localities and even their states from invasion. Article I took a large step by giving Congress the authority to pull those militiamen into national service. But it certainly did not compel anyone outside a militia into national service.

Justice White's first bald assertion is breathtaking: "the mind cannot conceive an army without the men to compose it." American armies were successfully formed without a draft to oust the British in the 1770s, to repel them again in 1812, and to conduct overseas campaigns thereafter. Armies do not need drafts.

White continues: "In England, it is certain that, before the Norman Conquest, the duty of the great militant body of the citizens was recognized and enforceable." Certainly it was — by magistrates, members of Parliament, lords, and the overseers hired to maintain order among serfs and subjects. In other words, conscription was well recognized by exactly the ruling class from which Americans fought a war to separate.

Arver stands with Dred Scott v. Sandford, Buck v. Bell and Korematsu v. United States among the worst rulings on civil liberties in the Court's history.

AND COURTS DO NOT MAKE LAW

Most importantly, even a nine-to-nothing Supreme Court decision is not law. Only Congress makes law. It is time our current Congress stepped in. Its members seem oblivious to the military manipulations of this administration and the last. I say oblivious because I am certain a majority in both parties would object strongly to the change now underway.

A DRAFT IS NEITHER LEGAL NOR NECESSARY

There is no need for a draft. If the United States is in military peril, our standing forces and new enlistees will suffice to repel any enemy that lands foot soldiers on our shores. In the one invasion we suffered, from 1812 to 1815, the United States fought Britain to a standstill without drafting a single American. In the three months following the September 11 attacks, more men and women enlisted in the armed forces than at any time since the Second World War.

Nor is a draft especially effective any longer. Military service has become more intricate and specialized. Ask any veteran whether he wants a conscript in his bunk, his trench or his mobile brigade. Being less trained, less eager, and in some cases actively seeking to get out, the draftee is likely to be an unreliable comrade. In modern warfare, where data, analytics, engineering and signals create military might, the best manpower is likely to be people who work for technology firms now and can be paid for that work without being compelled.

Understand also that a president or a party with an incentive to go to war has far more ability to do so when fifteen million men are suddenly at their service.

HOW WE UNDO THIS

Media is probably more powerful than the ballot box. Share this, or something like it, with seven other people, and ask each of them to do the same. Reserve a table for eight at a different restaurant each week and invite friends for the most important civics discussion of our lifetime.

As for the ballot box, every U.S. Congressional seat is in play this autumn. Consider using the write-in line to send a second message; those votes count, and they cumulate with the candidate you mark above so long as your written mark is clear. In Connecticut a write-in candidate must have declared eligibility with the Secretary of the State.

By late November we will have designated a Congress that should have ending the draft in its sights. But since that would require undoing a December 2026 procedure, far better that the current Congress act now. Implore every sitting member to end this Selective Service tyranny, and perhaps the Selective Service altogether. It is easy enough — let each of the six military branches assess recruits its own way.

It is easy to dismiss the scenario. Please put it in perspective. In early 1860, Southern planters were as a class the wealthiest people in the Western world; by the spring of 1861 they were spearheading a war against their benefactors. In early 1910, most considered Germany the most sophisticated nation in Europe; by August 1914 its leaders had led it into a devastating world war. The United States in 2000 was at war with no one; after the attacks of September 2001 we were suddenly in a global war on terror, with our own freedoms diminished by a reactionary PATRIOT Act.

So it can happen here. Let us do one easy task to reassert American freedom and keep us out of an unnecessary war.



Volunteers, not conscripts: Ethan Allen's militia takes Fort Ticonderoga, May 10, 1775.

OUR PURPOSE

Conserva-Tarian: Definition and Purpose

BY CS 250 FOUNDERS AND PUBLISHER

We welcome articles about civics, both public and private. With an expanding readership, we hope to influence our national civics and politics.

Contributors should email using firmconnect@gmail.com. These are especially welcome from those with intimate knowledge in a subject, but pure opinion pieces backed by reasoning are solid too.

Articles are edited with a "Conserva-Tarian" overlay. Since American families, American businesses, American universities, American religiosity, and American government can and should again influence the world, our direct focus is the USA, and in particular New England, where America's "leading lights" still burn.

Conserva-Tarian is a term we trace to 2014. It melds "conservative" and "libertarian" very well, and decently defines the American creed. Since 1776, thoughtful Americans have generally shared a strong belief in: Tolerance for others, Individualism (not groups), merit-ocracy (not blood lines), property rights (not forced socialism), and Deism (at minimum, that we have a Creator). This creed envelops almost all of us, from center-left Democrats, to Libertarians, to far-right Republicans. Though our elected leaders may squabble, we the people generally hold the above tenets.

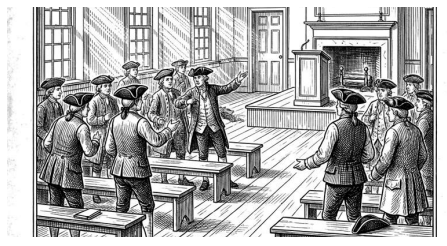
The far-left, are not among "We the People". They are by our definition, those who do not want America to succeed. Though they may profess patriotism, they are, by this definition un-American.

Common Sense 250 is for the rest of us. It is meant to extol virtuous Civics to Americans for the NEXT 250 years. We trace to Thomas Paine, but invoke modernity in having an online version follow the paper version 5 to 7 days later. The online version includes ripostes which all readers (even leftists) can get published. May this herald resurgent journalism, and a resurgent United States of America.

Old + new Media Managed by the YOUNGER or the BETTER (bYoB). Hear here!
commonsense250.news/hear
CS 250 welcomes students, paid and volunteer. See p3.

COMING IN 2027

A Second Hartford Convention



BY COMMON SENSE 250

In 2027, civic-minded adults and teenagers from the six New England states are invited to Hartford, Connecticut, where space is being rented to once again discuss our relations with the federal union. It was done before, in 1814.

New England is especially ripe for a concerted statement of republican and democratic values. The region was at the forefront of the freedom of the 1770s, the emancipation drives of the 1850s, and the freedom festivals of the 1960s.

Details will be published here as they are settled. Readers who wish to attend, speak or help with the arrangements should write to the publisher.

OPINION

Health Insurance Spike and Poor Government Decisions



A hospital trauma team works a simulated patient in a drill, 2010. Photo: Robert Couse-Baker, CC BY 2.0.

BY SEN. JAMES LIBBY

When it comes to health insurance, the Affordable Care Act (ACA), the lack of tort reform, our inflating American dollar, fraud, and several other key issues have put Maine in an incredibly vulnerable position. A solution to the health insurance problem will be elusive; but American political leaders must face the challenge now – not later.

A presentation made to the Maine Legislature's Health Coverage, Insurance and Financial Services Committee in November tipped off lawmakers to what is coming. For the 64,678 Mainers who get their insurance from Maine's CoverME, the state-based health care exchange operated under the ACA, health care premiums are set to increase by an average of 77% in 2026 for households receiving the federal enhanced premium tax credit (EPTC).

For many Maine families, it means a much larger percentage of their income will go toward health insurance premiums – that is, if they even decide to continue coverage. Those in the highest income bracket who currently receive the EPTC will lose the subsidy completely. And according to the office that oversees the Maine Health Insurance Marketplace, that could add up to tens of thousands of dollars per year.

One problem is the ACA, known to most as Obamacare, has been failing us for years. Higher subsidization of it through the American Rescue Plan Act of 2021 and then extended by the Inflation Reduction Act of 2022 only masked a problem that had been growing since ACA was first implemented in 2014. The nearly 600,000 Mainers with health insurance through an employer (including me) have already experienced the rollercoaster of double-digit rate increases over the past decade.

In fact, the average annual cost of insurance for single employees covered under an employer-sponsored plan was $5,571 in 2013, the year before ACA took effect. Today, that same coverage is $9,325, according to the 2025 Employer Health Benefits Survey released by KFF this year. That's a staggering 67% increase under ACA, certainly not what we were promised by then-President Barack Obama. Unfortunately, health insurance premium increases are about to rise still higher.

The ACA was billed as health care reform; but it did very little besides enriching insurance companies by forcing people to purchase policies under penalty of an additional tax. Health care providers on the other side of the insurance equation can charge whatever they want because the government has subsidized their patients' insurance premiums. It demonstrates the ACA never solved the true problem with health care – it simply became one of three major cost drivers of it.

ACA has cost taxpayers dearly and has been ripe for fraud and abuse. The Government Accountability Office reported in December 2025 that millions of improper enrollments accounted for $27 billion in taxpayer losses annually. It's simply more proof of a broken system that only drives up costs in the long run.

Another problem is the American dollar itself. Recently the Federal Reserve System's M1 money supply expansion topped $19 trillion dollars, up from about $4 trillion in February 2020. The money supply was increased to accommodate interest rate cuts; and we have just experienced two rate cuts in the past two Fed meetings. The reality of this is that if all other intervening variables were held constant since 2019, health care costs will eventually more than quadruple from that 2020 date, since health care services are needs – not wants – and good healthcare is hard to find. Unfortunately, no variables held constant and upward price pressures are at severe levels.

If I were to advise the President on one thing, it would be to stop his well-intentioned advocacy for interest rate reduction. Rate reduction often works well by providing opportunities for consumer and industry borrowing and refinancing. But in the current inflated environment, that strategy will help some and hurt many others. It will cause another spiral of inflation in areas of the economy where more supply of goods and services are harder to foster, which is the case with healthcare.

Another cost driver is that the ACA and other insurance eras failed to reform tort laws that insurance companies charge medical providers enormous premiums to cover. The lawsuit lottery condition of the United States has led to higher premiums and defensive medicine. At some point, we will need to face this problem – we have been ignoring it for decades.

The ACA also didn't address our unhealthy, aging population, force price transparency or eliminate the relic known as "certificate of need (CON)," through which states like Maine limit competition. Maine reformers will tell you that CON has been reformed but much of it is still in law. Consolidation in the industry reduces competition and has also driven up prices in sheltered markets like Maine's.

The impending loss of the EPTC is a problem for Maine families; but it's one that Democrats created by increasing the subsidies to begin with. It only hid the problem and delayed the inevitable. What's happening now is the CoverME premiums are finally catching up to what the rest of us have already endured since ACA was implemented over a decade ago.

The entire health insurance system is collapsing under its own weight. The solution is to reform the health care system itself by addressing each of the problems I outlined above. I was involved in doing just that when worker's compensation insurers left Maine in the early 1990s. That fix, led by Governor McKernan, was outstanding. Unfortunately, its complexities pale in comparison to the health insurance premium problem we face today.

ECONOMY

Tariffs: Hurtful, especially in the northeast



Customs officers inspect imported cargo, Port of New York. U.S. Customs and Border Protection photo.

BY MARK STEWART GREENSTEIN

The few who support tariffs need to start again. I say "few" because almost nobody likes the consequences of tariffs, direct or indirect. Many who support President Trump align to approve of tariffs simply because Trump is behind it and they are convinced he's playing 4D chess. Separate them, and there are few Americans who approve.

The direct consequence of tariffs are: consumers pay more. Or at least "more than necessary". If an importer really can absorb the cost of the tariff and keep a decent margin, then without the tariff, that importer COULD be offering consumers a still-lower price.

And where is the excess we lay out going? Not to the importer. Not to the American retailer. It's to the U.S. government, a very UN-worthy receiver. Our government already taxes us too much; it does not deserve a windfall from our purchases of imported goods.

The indirect consequence is even worse: foreign nations enact reciprocal tariffs on U.S. exports. That has not happened in a large way yet; but all it takes is a populist leader abroad to say "I'm standing up to Trump". His consumers will then have THREE reasons to not buy from U.S. firms: • Higher prices to them, • Akin to war, they adopt "Don't Buy American", • New manufacturers form in those nations to compete against us.

Any one of these three is devastating to American exporters. Indirectly it hurts us all, because less money in the pockets of the employees and owners means less they can spend domestically. And if it's dramatically less revenue, employees get laid off. That's ZERO income for them and greatly reduced spending to businesses around them.

What does it take to trigger this retaliation? For some foreign leaders it would take a lot, but if there's anything that can supply instant international animus, it's the not-so careful words of a bombastic U.S. President.

If the Trump Administration REALLY Wants Tariffs, Use Congress. Congress, should a majority in each House approve, has the sole responsibility to impose tariffs. This comes straight from the U.S. Constitution. The Framers did not want states competing with one another to have lower tariffs, so they added the language in Article I sec 8, that "all Duties, Imposts and Excises shall be uniform throughout the United States". From the outset, the Trump tariffs were an end-around.

Why has Trump eschewed Congress thus far? Because no Democrats and very few Republicans will vote for raised tariffs.**

The RIGHT policy The world has known since 1776 that the wealth of nations (ours and theirs) increases with free trade. Mercantilism is jingoistic and can lead to war. Even when it doesn't lead to war, it punishes consumers. A few leaders look tough on video while the rest of us suffer.

I am a candidate for Congress, a liberty-minded Independent. That's neither left nor right (we call liberty-mindedness "above"). If elected, citizens can count on my vote to be a steadfast "no" on tariffs. They are unwise. Even if the revenue dramatically brought down the debt (it doesn't; $200 B wind-drift barely makes a dent in a $38,000 B mountain of debt) tariffs are bad. Tariffs act as a tax on us.

I will never vote to use a tariff as a weapon to prod a foreign nation's policy change. We have enough clout and enough financial tools, from freezing foreign assets to outright urges to boycott sales, to propel change. Unless a nation truly deserves a financial sanction, let American businesses and American consumers trade with their businesses, and don't put upon us a tax every time we buy Italian shoes, Moroccan shirts, Chinese toys, Colombian coffee, or New Zealand fruit.

With six Supreme Court Justices voting against him, our President now looks to administrative loopholes and legal interpretations to do what's not right in the first place. He should let it go. I'm Donald Trump's ally on many things. He's shown by effective use of the military that he can move nations toward compliance; he does not need a punitive tariff regime to do so.

** Only 11 states have a positive trade balance; nine are politically "red", led by oil exporter Louisiana. None is in the northeast; even the Congressional Republicans from the other 39 states would likely vote against raised tariffs. Indeed, one of the worst trade-deficit states, just behind the two biggest "losers", New Jersey and Tennessee, is MICHIGAN. Yes, producers of the most expensive items consumers can buy, Michigan's trucks and cars are virtually off-limits to international buyers, so high are THEIR protective tariffs against U.S. car manufacturers.

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POLITICS

ICE Deportations: for New England Republicans, it's NOT an 80-20 Issue



Federal agents on an ICE enforcement operation in New York, January 2025. ICE photo.

BY KEMLER SAMUELS

"80-20 Issues" are the new hallmark for political pundits to note, and for political consultants to steer their candidates to elevating. I am a volunteer consultant to all Northeast conservative candidates, and my wisdom for you is, ICE deportations are NOWHERE NEAR an 80-20 issue for New England Republicans.

While national polling MIGHT yield a 70+ percent favorability, please remember: nationwide polling absorbs New England, a mere 6% of the U.S. population, with the 94% elsewhere. Fervor for ICE deportations in Arizona, Texas, and Florida (together nearly 4x the population of New England) dwarfs the coolness that New England voters have.

As of mid-February 2026, ICE deportations have barely been vivid in New England. A five-day ICE intrusion in Lewiston Maine yielded the only widely-photographed mass arrests. Should ICE operations head to multiple New England cities in salient force, there are too many things that can go wrong. It will animate New England opinion against these stiff-armed deportations. Nice neighbors pulled from their homes, harsh detention of their children, scuffles at protests, and perhaps violence akin to that displayed in Minnesota all move the opinion of all but the most fervid "law-and-order" voters.

As for "law-and-order" leaders....right now, it's not a good look. Those leading the ICE charge are not exactly "telegenic": Greg Bovino (Patton without a war), Steven Miller, Kash Patel, and Ken Paxton. More telegenic, but also problematic: Tom Homan (calm and seemingly warm, but view the semi-criminality for which he got a "pardon") Kristi Noem (telegenic, but her fabrications in defense of "following orders" are out-of-control)

And it will get worse. Another shooting during a deportation operation is almost inevitable. Videos of ICE taking good-but-for-their-immigration-status men from their homes can't possibly engender sympathy for the heavily-armed, still-masked SWAT-like teams. Photos of a crying child without her parents well-up almost all our sympathies. And while the cerebral can and should overwhelm policy, the emotional usually rules mass opinion.

Meanwhile, Republican rhetoric about ICE helps a very wily (and very telegenic) Gavin Newsom bring forth the clever, manipulative acts that also animate media for him and against sensible policy.

We lost the Vietnam war largely because of images. Our policy was rightly on the side of freedom, but the images of fire and blood overseas, and of roughed-up protesters at home, made the vast majority of Americans anti-conflict or at best unconcerned with how Vietnam was run. If ICE images seem similar, please take heed.

A "hill to die on"?

New England Republicans especially... are federally-run deportations your "hill to die on"? There are others to fight fervently for: Keeping babies alive Universal school choice Pro minimizing government, and Ending local Democrat Party hegemony.

In 2026, state government policy should be more important than any DC policy. DC issues are assuredly problematic, in part because Republicans in Congress are themselves divided, and in part because Trump floats a policy every month that is hard to defend. Stick to your state and local issues. Even if running for Congress, the last issue, about Democrats restricting our lives, taxing us wherever possible, and rewarding their specialty groups at our expense, is fulsome for weeks of podcasts and personal campaign appearances.

The RIGHT policy Here goes. With still fervor for the "law of the land", even at the no-tolerance level, we can remove just as many illegals with ICE minimally on the sidelines while local police do the arrests.

When two officers gently meet an illegal child during a school lunch period, they can then call the mom saying "Senora, your son is in our custody. We see no evidence of his status as a "dreamer". Do you and your husband want to come to our station to work this out?

When two officers meet an older illegal following hospital care or clinic treatment, a call goes to the family: "We have your abuela in custody. She will be sent to a detention facility unless you want to be self-deporting with her. Would you like to see us and hear your options with her?"

The Feds should reward them for good, surgical apprehensions. That effects the "lighter touch" that President Trump recently touted.

Local police arrests are also economical. It costs ICE nearly $800 per official per day to work in Metro Minneapolis. The low-end estimate is $18,000,000 a week; and the high-end estimate (from an unsupported Kristi Noem) of arrests per week is 500. That is $36,000 per arrest.

So instead, how about paying that to local police, who almost certainly have better knowledge of where the illegals are and their activities. Even paying the local PDs half that brings their precinct over $500,000 for every 30 people they turn over.

Additionally, consider Alternatives To Detention. Detention following arrest averages nearly 50 days before deportation, costs on average $7500 more per detainee, and deprives both employer and employee of productivity. Ankle-monitoring is effective, while showing we mean business.

Notice that the above policy and tactics apply irrespective of whether Republicans desire deportation only from post-immigration criminals or to all non-legal immigrants. It thus bridges the "libertarian" wing among Republicans (those aroused only by criminality), the cultural conservatives, and the "law-and-order" voters. The differences among our groups alone make this nowhere near an 80-20 issue. Let the issue be subordinated to other pressing federal and state activities.

LIBERTY & POLITICS

How Good Immigrant Families Can Stay

Democrat governors are wringing their hands over deportations, but the real advice belongs to the families themselves: here is how the good ones prove they belong here.



New citizens take the oath, 2023. National Park Service photo.

BY MARK STEWART GREENSTEIN

A lot of Democrat governors are wringing their hands right now. Mine is one of them. The issue is what to do with illegal immigrant families they would like to keep in their state, despite the Trump federal march to remove a lot of these recent arrivals, and what to do with their children, who might be allowed to stay. That breaks up the family.

I have a solution for every one of those governors, and more importantly for every one of the good families. "Good" in terms of citizen-worthy is a word I defined a long time ago. Sensible immigration was the first thing on my agenda when I started making videos, back in 2014, when they were still only audios. It is on the website as well, StewartForLiberty.com.

The number one thing for "good" is wanting to be American. That probably characterizes 80 percent of recent immigrants. It used to characterize 100 percent. We faded away. The other 20 percent is really the bone of contention for most conservatives: not caring about America, not wanting to be American, but wanting to take advantage of what we Americans, including waves of immigrants from many generations, have built here. That is a different kind of immigrant. And it is right, I think, to parse the two types, and yes, to demand that the second type go home.

To the first type, the ones who really want to be American, here is my solution. Get there fast. Learn English quickly. Demonstrate a desire to be part of Americana and not just to take from it. And do not attach yourself for very long to any welfare. There might have been a little at the beginning to help get you here. Get rid of it.

Families who will do that become the last group of people a Trump-Vance administration wants to deport. They cannot deport everyone. There are 30 million illegal immigrants here. They will not be able to do this in this decade. So be among the ones who will stay because you deserve to, not because of luck. Not because they did not find you. Not because you hid your kids and hid your exposure. Do it because you are exposed as a great American.

"Good" is true of probably 80 percent of immigrants. It is about 100 percent of Nigerians who come here. It is about 100 percent of Eastern Europeans who come here. But it is dubious among Asians from other nations. It is dubious from Latin America. Prove that you are in the "good" category.

And it might take disassociating yourself from some very bad Americans, the ones who influence you to be un-American, to be more Mexican than American, more Guatemalan, more Chinese. Those are bad influencers. Unfortunately, their demagogic tactics in many cities have put them into spheres of influence. And they are often nice people.

So what does an immigrant family do? It might be time to listen to good conservatives, the ones who really do welcome immigrants if they have Americana in the forefront. Be among those families.

For Students



Then: newsboys and newsgirls, Hartford, 1909. Lewis Hine, National Archives.



Now: students at their laptops. Photo: Erikareuter, CC BY-SA 4.0.

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Allen and the Green Mountain Boys, 1858. Library of Congress.

1775–76

ETHAN ALLEN · *Connecticut*

Leads a group of 40 militiamen to invade British-held Fort Ticonderoga, capturing all the fort's defenders by surprise without firing a shot. The 70 cannons captured were transported overland under Henry Knox's leadership and quietly installed on the hilltops surrounding Boston, forcing the British who were occupying Boston to evacuate on March 17, 1776.



Illustration for Common Sense 250.

1826

GRIDLEY BRYANT · *Massachusetts*

Constructs the Granite Railway, widely recognized as the first chartered, industrial or commercial line built for business. Its inaugural mission: carrying granite from the quarries to build the Bunker Hill Monument, on the fiftieth anniversary of the battle there.



Illustration for Common Sense 250.

1875–76

ALEXANDER GRAHAM BELL · *Massachusetts*

Working with Elisha Gray, the transplant from Scotland invents and then patents the telephone.



Coolidge, October 1924. National Photo Company, Library of Congress.

1926

CALVIN COOLIDGE · *Vermont*

The Vermont native gives a most-American speech at Arlington for the Presidential Memorial Day address: "As a people we have not sought military glory. Because of our fortunate circumstances, such wars as we have waged have been for the purpose of securing conditions under which peace would be more permanent, liberty would be more secure, and justice would be more certain."



Illustration for Common Sense 250.

1975–76

MELDRIM THOMSON · *New Hampshire*

The Governor endorses the motto "Live Free or Die" for every New Hampshire license plate. It fits his long-standing minimalist creed, which appeared most prominently in his "Axe the Tax" platform.



Maye, November 2024. Photo: Tennessee Titans, CC BY 3.0.

2025–26

DRAKE MAYE · *Massachusetts, via North Carolina*

Actions speak more than words. The Patriots rebound under Maye after five years in the wilderness.

Selected by Mark Stewart Greenstein

LIBERTY & POLITICS

No-Mask Rule Won't Reduce Violent Crime

Connecticut Democrats want to forbid police officers from wearing masks on duty, and the legislators pushing it have plainly never asked a cop why he covers his face.



A masked federal agent on an enforcement operation, 2025. Department of Homeland Security photo.

BY MARK STEWART GREENSTEIN

The Connecticut General Assembly has a special session coming up, and among the things to be legislated is a proposal from Connecticut's Democrats that prevents police from doing their jobs. Law enforcement officers would be prevented from wearing any mask on duty. Not even when arresting a bad perpetrator. Nope.

This comes from legislators who largely do not understand crime. I am pretty sure they do not understand its nature. They do, however, understand force. There was no objection from Connecticut's elected Democrats when federal SWAT teams donned face shields and body armor to make a peaceful arrest of free speech protesters in 2025. And these legislators offered not a peep five years ago, when states forced employees to be masked in order to keep working through the supposed COVID contagion, or else be fired.

There are very good reasons why law enforcement men and women should be allowed, if they choose, to wear masks. They might not want their skin clawed when a recalcitrant arrestee fights back. They might not want spit in their faces. They might not want the blood of a recalcitrant, disease-ridden druggy running down their throats.

And there is a long-term reason. Many do not want to be recognized, off duty or on. Perpetrators eventually get free when they are released. Knowing their police antagonists is a danger. Cops can minimize that danger, and become at least a little more comfortable in their profession, if they are allowed to be masked when arresting a violent perpetrator.

Do legislators even speak with cops? Most cops do not live in their own work district, because they do not want to be recognized easily off duty.

Those who want this no-cover-up legislation would like law enforcement by nannies and third grade teachers. "It would be nice if you came down to the police precinct. We have a squad car, but we could walk with you if you'd like." Wouldn't that be nice?

The people who want this are the same types who think it is dehumanizing to push a perpetrator into a squad car upon arrest, even though that guy has just pushed a toddler into an emergency room.

Connecticut's Democrat leaders have already made it dramatically harder for police to do their jobs. That was the police accountability bill passed in 2021. Some of us would-be legislators would like to end violent crime in Connecticut. Most elected Democrats — there are a couple of exceptions — are not among them.

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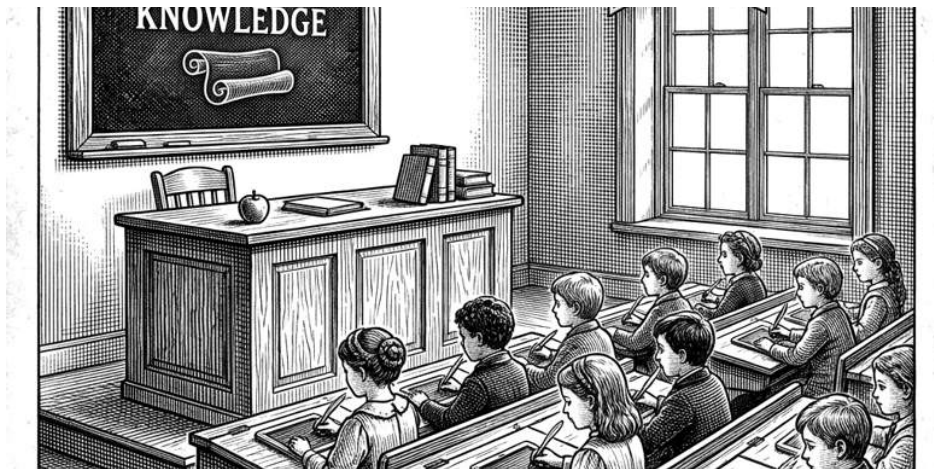


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EDUCATION

Teach To The Tests

Four words that should not be radical, and the reason an average Maryland student gets a better hearing from elite colleges than a Mississippi valedictorian.



BY MARK STEWART GREENSTEIN

How do we improve education? At least in the secondary schools, where I do have expertise, I have four word instruction. Not radical. But to some teachers, the instruction is unspeakable.

Four words for secondary school:

"teach to the test".

Yes. This means preparing students for success on standardized tests. The occasional statewide and nationwide tests of abilities and knowledge deserved at least inclusion, and perhaps fervor, by our secondary school teachers and administrators.

You know who does like teaching to the tests?

Parents.

College admission committees.

And most mature students.

Compared with the material they consider "out there" and impractical for them, student do want to learn materials that's tested with standards. These students pay attention.

Students with practical ambitions, and that includes seventh and eighth graders who want to go on and do something professional but don't yet know what, already know that learning at the standardized level and mastering it pays dividends. Most of their parents would like teachers to be instilling that.

We can do it as a curriculum without cheapening the curriculum, because standardized tests — with one big exception — generally test good stuff. Teaching to them is not a bad detour. It is straight on. And administrators should let teachers who would like to detour do so. Enthrall your kids with what you are also passionate about. But be passionate about their successes.

You know who does this?

Maryland.

Maryland has the highest standardized test scores in most years across the fifty states. Maryland has a high percentage of elite college professors as constituents. It has a lot of highly paid Washington-area government officials. It has defense contractors, who demand success. College admissions committees see that, and to some extent apply Maryland students' GENERAL skill level to all of Maryland's students. By contrast, in Mississippi you can be the valedictorian and still not get into an elite college, because the college admission committees don't trust a Mississippi education against the standards. In Maryland you can be average and still have a leg up — a good leg up — for elite college admission and for scholarships to those colleges, because they perceive that the average is quite high.

STANDARDIZED TESTS CARRY PRACTICALITY

A standardized test detour should not take away from practical learning. But pragmatics are involved in almost all standardized tests. For many teachers, adding standardized test focused modules IS practical. The beauty of online learning means that few, if any teachers need to alter their curricula – students can experience via an online classroom the one or two other teachers in the district who might deliver effusive, pragmatic lectures one or two hours a week. With the schools wired up, every student would be able to access it.

Teaching time with the kids is really limited. In an average school month you have at most a hundred hours to teach. So what am I not that interested in? Dickens. Edith Wharton. That is for a little bit of summer reading, and if a kid is enthused in the first few chapters, keep on going. Pile on more Edith Wharton, or similar English literature. Pile on Harry Potter, though, if that is what a kid is learning better vocabulary from while being entertained, and learning about the world — not as good as old England, but it is still old England. And please supplement modernity with short, practical articles in our summer reading.

Here is the absolute opposite:

Shakespeare.

For most students we should dispense with teaching it. I came to love Shakespeare as an adult. But as a tenth grader, I did not. Shakespeare was taught badly. We had to plod through line after line, word after word, of four-hundred-year-old words. It couldn't be enjoyable. It was a chore, until I saw a play, which is funny. Just having a video in school for act one will get so many more students engaged and wanting to read more. What are the words behind this? Shakespeare is humorous. It is hard to be humorous even in our own time, and this guy is funny, and it has lasted 425 years. Absolutely amazing. That would give great appreciation.

But it is off standard. Don't make it a requirement. Make it optional. Kids can become Shakespearean scholars in college, maybe even near the end of high school if they have really latched on to it. Until then: be practical, be enjoyable, and teach to the tests, so that the practicing — and the enjoyability that kids gain from school — gives them long-term success.

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CIVICS

Homelessness Begins In The Mindset

Two very different prescriptions for two very different kinds of homelessness: bridge loans for those who want to work, and psychiatric treatment for those who do not.



Tents outside Union Station, Washington, 2021. Photo: Elvert Barnes, CC BY-SA 2.0.

BY MARK STEWART GREENSTEIN

Two issues have received attention lately, one national and one local. They are related in spelling only, and they should not be confused with one another. The legislators who have to grapple with this have the brain power to do so. But there is cause for our concern.

Number one, legislation gets separated, and legislation gets amalgamated beyond the control of any one leader, resulting in BAD legislation. Number two, legislation often comes with compromise when clear, strident solutions are better. Number three, good legislation often succumbs to feelings, and that is especially true when Democrats control our chamber. Number four, good legislation often comes with outside businesses or outside donors greatly influencing it.

Let's be smart about statewide legislation. Here are two areas where outside groups deserve to make the first recommendations before the legislature. Allow either the governor or the legislature to empower groups of citizens. Wise citizens. They don't have to hold PhDs. Wise often means just plain experienced in life. PhD holders often contravene common sense. So when a group can get good recommendations, the legislature hopefully can do an unconvoluted up-or-down vote.

Here are the principles behind this. Homelessness among adults almost always stems from an individual's mindset. Homelessness has at least two prescriptions, very different from one another.

For well-meaning, robust people with a short-term deficit — they are in a health care bankruptcy, have suffered an injury, or a loss of work —

bridge loans to keep their homes.

These would come from the state if private lenders are unavailable. These people want to work, have a rent contract or a mortgage, and they will repay their debt almost certainly. Let's not disrupt their lives any more than they already have been. If that well-meaning person doesn't repay, the occasional loss might be on the state. But a state agent who nimbly assesses who wants to work and repay a debt will yield very few delinquencies.

Now, the second prescription, for those homeless who don't want to work:

psychiatry, good civics, or removal

They are almost certainly mentally ill. Those who don't want to work, I believe by definition have a mental illness. They don't belong in a capitalist country. So with a long-standing mindset — four months or more of a person not wanting to work — they have to be treated differently, and treated not in a home that we are going to pay for, but in a psychiatric place that yes, we do have to pay for, for a while. It should come with healing, getting them over this. The psychiatric facility is probably not going to be a pleasant place, but it is better than vagrancy on the street. That is the condition.

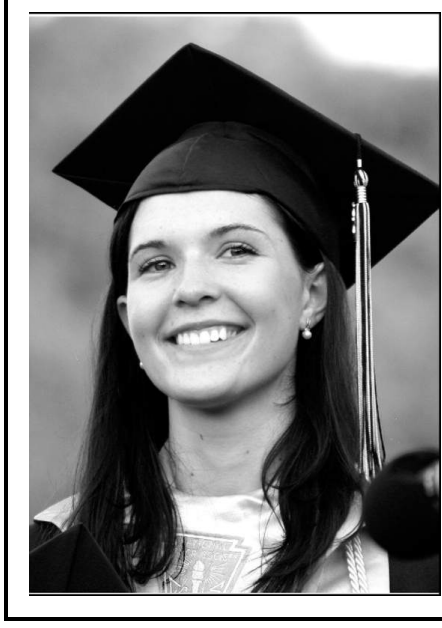
Once treated well enough for release, those mentally ill could have halfway houses. Sole ownership might take a while. But until then, occupancy in a group home has the benefit of helping the newly released person socialize better, and maybe help them with jobs, or at least job skills, to continue on a path toward independence.

There is enough housing in this state for all 3,600,000 residents. There are empty houses, both single-family and multi-family. There are buildings that can be reconverted — my business partner is doing one of them in Hartford now. They can be profitable if some regulations are reduced so you move faster. I thank the city of Hartford for now doing this with some developers. It is a good thing. And the owners of this kind of housing, be they these individuals themselves or their landlords, can earn stock market rates of return.

Any well-balanced adult can get decent work. This is not 1931 and a deep recession. Any adult who wants to work can find employment in this state somewhere, including remunerative online work from where they are. Even at minimum wage, you work 50 to 55 hours a week and it yields at least $3,000. So spending $1,000 of that on your housing still leaves you $2,000 a month. And one of those two jobs — because 50 hours a week probably takes two jobs to do — is likely to pay well above minimum wage when you do well for them. Six months later you are into a raise, maybe a 40-hours-plus-benefits type of work situation.

That can be the on-ramp for those who are homeless but not permanently mentally ill.

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LIBERTY & POLITICS

Social Security – Rep. Larson defends the indefensible

BY MARK STEWART GREENSTEIN

Oh my. Congressman John Larson has made "saving Social Security" his banner issue. Only a few highly protective or deeply out-of-touch people think this is a system worth saving. It should have been ended long ago.

By 1999 it was clear to anyone that Social Security could not pay its promised returns without a large tax increase. By 2005, Social Security was, by any business definition, bankrupt. Twenty more years of deficits, higher life-expectancies, and a still lower worker-to-payee ratio (now 3:1; when the program was inaugurated it was 18:1), Social Security cannot right itself absent a dramatic cut in benefits, or a tripling of the tax it foists on workers.

The 1936 system of SS funds being set aside and building interest to be paid decades later lasted all of three years. By 1939, politicians had raided the Social Security Trust. Since then, some or (now) all of its funds go right to the U.S. Treasury, for Congress to spend as it wishes.

Social Security will always be a fat trove of money for politicians to take. That is because: 1. Few people notice the mis-directed spending, 2. Those who notice can't do anything to stop the politicians or the "Trustees", and 3. Those who are hurt most have no political clout: the very young and the unborn.

The harm to young workers is significant. Social Security (including Medicare), extracts 15.3% of a mid-income worker's salary. One who "earns" $70,000 a year thus sees only $59,300. Ask one hundred workers whose take-home is $59,300 minus income taxes whether they'd prefer an added $10,700 and forgo a mystical Social Security benefit 20, 30, 40, or 50 years away. At least 90% will say "yes".

For those few who would like to entrust their money to the government for those many years (and hope to not die before collecting) there's a beautiful option that Larson doesn't countenance: make Social Security optional. The people wanting the government option can still have it; a slimmed-down Social Security system will still give the same percentage returns; it does not require 100,000,000 participants. It doesn't even require 1,000,000 (see long-standing private wealth managers who do very well for a mere 1000 or so clients.).

Larson is not alone. His blind spot appears to infect every elected Democrat. Not one Democrat has announced a vision other than government-controlled tethering of our earnings. Not one Democrat decries the oppressive unfairness that Social Security foists on younger workers. And ironically, not one elected Democrat even points out that Social Security is the most regressive tax in America. High income earners pay in at a LOWER rate than middle income and low income earners. Currently, the pay-in applies only up to $184,500**. Thus, the person earning above $184,500 annually has a smaller percentage taken out. For the $300,000 earner, the benefit is a boon: 15.3% of $184,500 is just 9.4% of $300,000; for the $750,000 earner, the benefit is laughable: 15.3% of $184,500 is a mere 3.76% of the $750,000.

Elected Democrats endorse Social Security because they like government control. The forced pay-in, before even receiving one's paycheck, is the ultimate way to fund statism. FDR started this morass, and 90 years later, it is a fixture for elected Democrats (and some Republicans).

Why the Larson solution does not work Rep Larson's main cog in attempted reform is to push for high income earners to pay in at the same rate. If enacted, this would be a very temporary fix. Larson's solution neglects the pay-OUT aspect of Social Security. At some point, the high earners retire; then their benefits come due and they are HIGHER than the mid-income earner. Larson's plan might bring a quick infusion of money, but unless the accounting is even more monstrous, the ledger must show a very high expected pay-out for every high paying-in "contributor".

Indeed, the pay-OUT time almost certainly comes sooner than average if high income earners are fully contributing. At least four reasons gird this: 1. The highest income earners are on average older and thus closer to withdrawal age. 2. Because they don't need the money, they are more likely to take their money out at age 59.5 than the lower income earner who calculates a bigger benefit by delaying withdrawals. 3. They are healthier, and far less likely to succumb to disease in their early 60s than lower income workers. 4. They are almost always married, so the Trust Fund will not be keeping their funds, as it does with unmarried workers who die young.

Now, if Larson, in traditional legislative fashion, is just "kicking the can down the road", with not true fix in sight, that's even more reason to keep his plans far away from a Congressional vote. If his plan is to fix by taxing workers at a higher rate, that's from the classic "tax-because-you-can" playbook.

Either version means Social Security's purpose is defeated. Social Security was meant to be a backstop, to keep those who had saved inadequately from working until they dropped dead. Now, any attempt to "save" it means a delay of the inevitable collapse, and unfair confiscations along the way. OSDI and Medicare should be optional; if a payout is needed for current retirees and those close to retirement, then that should come from the Treasury, not from workers whose confiscated earnings will never be fairly repaid.

** Social Security was capped for two main reasons: 1) high earners rarely need the benefits in old age, and 2) high earners are influential in policy-making; few legislators felt their well-heeled constituents (including political donors) would brook a 15.3% tax on themselves.



Ben Shahn's mural in the Social Security Building, Washington, 1940–42.

LIBERTY & POLITICS

Aid The Individual, Not The Group

Advocates want Connecticut to feed 36,000 people in three groups after SNAP ends, but charity that judges groups instead of individuals fails both the giver and the needy.



A food bank warehouse, 2021. U.S. Department of Agriculture photo.

BY MARK STEWART GREENSTEIN

As reported in the Connecticut Mirror, the ending of the SNAP benefit in Connecticut has advocates for asking us to spend money to feed three "needy" groups:

young adults,
veterans, and
immigrants.

There is a big difference among them. To the extent individuals are to be amalgamated (already reprehensible) let us explore each group's worthiness for receiving widespread charity.

"Young adults" include many who are one job offer away from a career that will lead them to out-earn the vast majority of us. But until they have a footing, those without family members to help are on the precipice of failing to feed themselves adequately. Food banks exist, but they typically carry not-so-nutritious food-stuffs.

"Veterans" are another widely divergent group – some vets are earning nicely with second careers on top of a large serviceman's pension. But others are facing a low pension, especially those who volunteered for service. Still others disabled from their service are truly hurting financially as well as physically.

"Immigrants", however, should not be needy. Recent immigrants are supposed to be working if they are here, and thus not starving. If they are here on a green card, they are working. If they are here with a sponsor, the sponsor is pledging to take care of them in case bad things befall their economics. So an immigrant who is not taking care of himself should not be calling on government welfare.

Now, there is a place for private welfare, and it should be the first call. Most recent immigrants are nice people. A lot of them, after they get over a hump, will be very productive people, good Americans in the making. But look to private. That might be their own employer. If an employer knows a man is on the verge of starving, almost any employer is going to find some bonus turkey each week, some extra to get this guy fed and to work. If not, there is family, there are neighbors, there are churches, there are other charities that are not government — which means it is not forced from our pocketbooks.

The other groups, veterans and young people, often have disasters befall them, so that they are less capable of helping themselves. Our immigration system, as we know, is totally screwed up. But at the core, people who come here are not here to take, at the outset or even long term. They are here because they are productive. They have the ability and the mindset to take care of themselves.

Now, giving welfare dollars, private or government, on a group-by-group basis is abhorrent. The government does classifications because current bureaucracies are incapable of examining individually. We should be more discerning, down to individuals. If a state government can't make a nimble bureaucracy to assess the "worthiness" of receiving a benefit, it should not offer the benefit.

Donald Trump's failing on the immigration front: disqualifying a whole country's would-be-immigrants. Even nations with vile governments have some very good people. Indeed, the best people living under vile regimes, are among the one MOST likely to want to immigrate here. We can and should parse them. The parsing of good from not-so-good is something that even government can do.

Again, private donors should have the first crack. They do it very well. They scrutinize the situation. Is this a good person to be aiding? Or is this a person we give money, clothes and food to who is just going to buy booze? Jewish charitable groups know the people who have been applying for aid, or maybe not even applying — they are really down and out, and somebody else is applying for them.

Discernment is right. It is the right thing to do for them, and for us, to feel good about where our private and, yes, our public welfare dollars are going.

Even government can do this. Make individualized decisions with it. You uplift almost everyone who is needy, because they (usually) step up as individuals. "Yes, I am down right now, but I am not out. I want to rebound, and I have gratitude for the agency or the individuals who are helping me".

When somebody is classified as just part of a group, they are suddenly entitled. They don't have to justify. They are not even likely to try. "Oh, I am part of a designated group: veteran, young, immigrant." And because they are not escaping the group to a higher status, they stay as a group in a lower status.

Individualism uplifts, even when it comes to charity.

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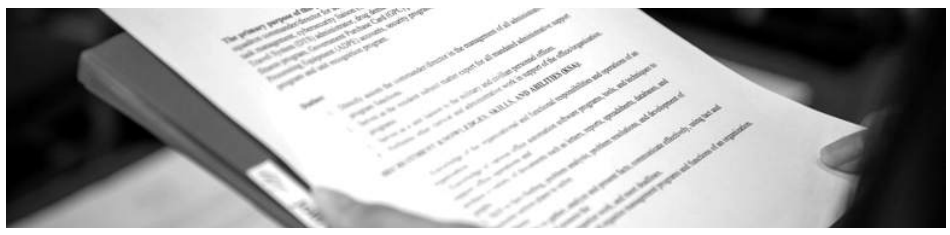
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ECONOMY

The Other Half of Housing Affordability – Higher INCOMES

Legislators and the media argue only about pushing prices down; the faster route to an affordable home is letting Connecticut families keep the money the federal government takes.



Résumé in hand at a hiring fair, 2023. U.S. Air Force photo.

BY MARK STEWART GREENSTEIN

Home affordability has two components, and it is unfortunate that legislators and the media tend to focus on only one of them: making the price of home rentals or home mortgages lower. I do not want to focus on that. I want the other half:

making the ability to pay much higher.

Increasing family earnings.

Increasing people's wealth.

Here is the slow and steady way to improve your earning power. Take that next job opportunity, or bargain for more responsibilities and higher pay at the job you currently have. Build your education — most employers, frankly, reward holders of science degrees. Work a part-time second job if your family can afford the time; THAT job might open up opportunities that the current first job is not providing.

Slow and steady rising income makes housing much more affordable. Fast is better still. It raises buying power, because you have more of your own wealth to keep. A good legislature, if it will follow this proposition, dramatically makes affordability come fast.

Ready?

I am in Connecticut, and I have put forward what I hope this legislature will do: allow a federal tax opt-out.

The opt-out means anyone in Connecticut who does not want to pay the unconstitutional portion of their taxes, and will not use those services, does not have to fully pay. Take highways, which are of dubious constitutionality. We have built them, and I am not saying to turn them down — but if you will never use them, you can opt out. If you would use them, a pay-as-you-go system for construction and maintenance would be good. To some extent we have that with the gas tax, though electric vehicles are not taxed on their usage, and in fact cause more wear than the average gas-powered car because of those big heavy batteries. It is an imperfect system. Even so, pay-as-you-go beats what the government extracts from us now. Extracts. Confiscates. We have no choice.

But a state can allow opt-outs from federal taxation, and protect its citizens who opt out. We are not going to let federal extraction happen. If we can block federal takings from banks, we will do so. If federal teams send a SWAT force against one person in a neighborhood who has been withholding — conscientiously withholding — we can protect against that too.

The great news is that in Trump and Vance we have the best pair maybe ever - the best presidential and vice-presidential mindset for not extracting money from people to benefit the feds. In a way, an opt-out benefits the federal treasury: they will not have to spend on the people who opt out. If that is half of Connecticut, that is half of one percent of the budget they save. And the Feds save more than what we withhold, because deficit spending runs about 20 percent more than the federal government actually takes in. With an opt-out, we are doing Trump and Vance, and anyone in a federal bureaucratic position, a favor.

So let the opt-out start immediately. A 50 percent withholding from a $10,000 federal income tax releases $5,000 to that family. The Social Security tax could be a 100 percent opt-out. We who don't want any part of Social Security probably deserve some money back, but most of us would let the government take it, if they do not tax us any damn more. That drops the Federal liability to zero.

All told, say it is an earner on an $80,000 a year salary. That gets this earner $14,000 more annually — and applied to housing, at least 30 percent more house, whether renting or making mortgage payments. You are not sacrificing any other pleasures. You are not scrimping on your kids' educations. And we are not taking down any state coffers, because this is from the feds.

What are you giving up? Your Medicare benefits — which an under-40 American is probably not going to see unless you destitute at 80 years old. You know this. So give it up.

Social Security? It's even more dicey. By any measure except the government's, Social Security is bankrupt right now; the government does not want to admit it.

At some point they will have to scrimp on payments to people who are not destitute. It will be means-tested, on their terms. But Social Security SHOULD give those who have substantially paid in a buyout. We should get SOMETHING, but even if not, we get 15% more take-home pay with a Social Security opt-out.

ECONOMY

New Yorkers, Come On Up to Connecticut

Sell what you own in the city, pocket the difference, and get three times the house — an invitation to the New Yorkers already thinking about leaving.



Hartford in October. Photo: Quintin Soloviev, CC BY 4.0.

BY MARK STEWART GREENSTEIN

This is for families in southern New York, and especially in New York City. I am in Connecticut, where I help people get into nice Connecticut homes.

To those of you who have been thinking about heading here — maybe just for a vacation home, maybe for a permanent one — I would like to introduce you to great properties you can have for about a third of the price. Sell what you own now. Pocket the difference. You will have more acreage, more room inside, and probably a pool if you want one. If you are mostly paid in New York, you can still pocket six or maybe seven figures.

A lot of you have been thinking about moving, even before the last mayoral election. Well, come on up. At least see what we have to offer, and how it will almost certainly suit your kids' schooling, your recreation, your better quality of life. Ask the New Yorkers who have already left and who you still keep in touch with. Are they all ready to come back? Probably not, because they like it here.

Allow Connecticut to show you homes that still have an element of the urban life you have come to enjoy.

If you are in the Bronx now, Stamford has a lot of what you already have, and it is only 20 miles away. Just come on up and take a visit. You can easily get back to the old stomping grounds — you can get to Stamford in less time than you can get to Brooklyn.

If you are in Brooklyn now, how about New Haven? It has always been a hip place. It has two neat universities, a lot of good nightlife, and tremendous pizza.

If you are in Queens, consider Waterbury. It is on the train line, so it is an easy trip back if you still cannot rip yourself away. It is a burgeoning city with very many cultures, just like Queens, but without the compactness of Queens, and without the crap that comes from New York's government and New York State.

And finally, those of you in Manhattan: look at Hartford. Not as much as Manhattan, but Hartford has its restaurants. Hartford has its nightlife, its museums, its culture. And it has some things that New York can never have. Recreation here is wonderful and easily had. So are sports. Not eight professional teams, but a couple of really good college teams and some very good, fun-to-watch, minor league teams. You can have the recreation, and your kids can have the sports you look for, without all of the closeness and the hassle.

I would love to show you more. Come on up.

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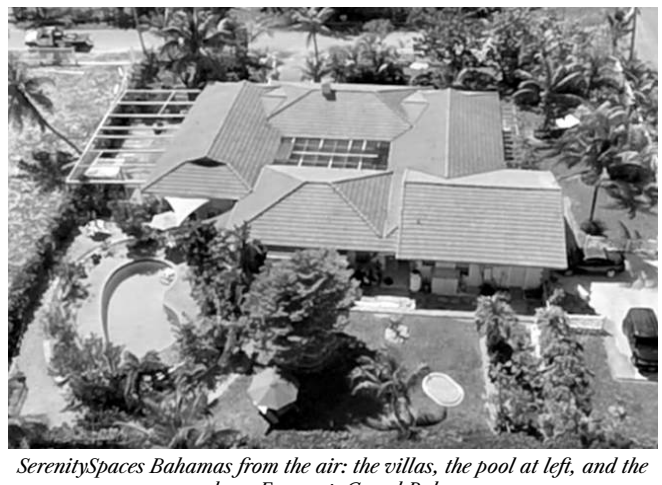
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SerenitySpaces Bahamas from the air: the villas, the pool at left, and the gardens. Freeport, Grand Bahama.

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LIBERTY AND ETHICS

A Liberty-Minded Reply to Matt Walsh

Punish the conduct, says a conservative for liberty. But it is the states' to punish, and the Constitution is the red line.



Henry Hintermeister, Foundation of the American Government, 1925.

BY MARK STEWART GREENSTEIN

Matt Walsh's August 31, 2026 podcast, devoted to exposing and ultimately reining in excesses that AI, including AI images that are revolting, deserves a liberty-minded riposte.

I admire almost every public aspect of Matt Walsh. His strident conservatism is needed in a nation whose leaders have lost their American moorings or are unwilling to act restore it. If more corporate, philanthropic, civic, and education leaders would act on even half of Mr. Walsh's suggestions and imprecations, it would save America.

Bur...

In the process, Mr. Walsh's conservatism too often greatly constrains American liberty. Criminalizing AI renderings used only in private by an adult is an unnecessary step.

The most perverted/depraved/disgusting images are in themselves harmless. It's what one does with them that can cause harm. No image alone tells a person to ACT with depravity; even coupled with a message to take action, that is not criminal activity. As Matt himself has opined – reading or hearing others tell us to do wrong does not excuse us, because we adults have brains and agency. Promoting unholy images to minors who are less equipped with reasoning MIGHT be harmful, and here we are probably in synch to keep the images away.

Now, almost nothing in the U.S. Constitution prevents STATE governments from legislating restrictively. Here is where Constitutionalists and Conservatives can break bread with steep restrictions on AI material. Be it creation, possession, or distribution, a state MAY restrict and even imprison the violators. With 50 state "laboratories of democracy", some, perhaps ALL might make the same decrees that Mr. Walsh calls for.

It is worth saying plainly that federal law already criminalises obscene visual depictions of minors, including drawings and computer-generated images, and that it has been upheld. My argument is that it should not, and that the question belongs to the states.

The major point of controversy is over images that stay personal. While I'd like to help wayward men save their souls, it's beyond my ability, and certainly beyond the government's ability.

The minor point concerns line-drawing. What is "too depraved" for an adult male to even view? Does it make a difference whether he has already witnessed not just images but reality? Soldiers who have witnessed combat, police detectives who have been at crime scenes, and attendees who have been in an abortion clinic have all seen horrors – it would seem computerizes images are less harmful to them than to a wide-eyed innocent.

Images don't ACT upon others. Mr. Walsh is concerned about the consequences of a pervert seeing these images: "Gallagher is accused of feeding genuine images of real-life children, which you found online, into an AI app to edit them...in order to do whatever they want with those images. They can create pornography or they can make deep fakes and attempt to blackmail you. And they can steal identities." It's blackmail and identity theft that the federal government should endeavor to help stop. The materials that might cause someone to blackmail another are not the problem; the blackmail is.

And possession is not inherently dangerous. Not to oneself and not to others. Good people possess lurid images and have never harmed another human. As Matt knows (and rightly fights for) the most dangerous item in a home is a firearm. The federal government rightly does nothing to stop their possession, because 99.99% of American homeowners use firearms for GOOD.

Allow me to "muddle" the line-drawing further: in Matt Walsh terms - an evening viewing horrible AI-generated images causes less damage than a year viewing CNN.

Mr. Walsh makes an analogy, but it is not persuasive:

Mr. Walsh helpfully says (at 10:40 in the podscripts) "we need to resolve some fundamental questions about what the Constitution says and what it does not say....we also need to identify some red lines that we simply won't cross as a society".

Agreed! Let me suggest at least one far-reaching "red line": the Constitution, with its original meaning, applied to today. This is NOT hard. Originalism does not need 20 page judicial opinions. It certainly does not need intermediate court rulings, three-part tests, or multi-level judicial scrutiny.

So let's apply it: the Constitution is exceptionally permissive regarding personal liberties. Amendment IV keeps the federal government out of our private possessions.

"The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated", says the Fourth Amendment.

"Papers and effects" is an easy extrapolation to computer generated images of today.

Searching for something others find immoral, disgusting or even dangerous to others is outside the federal government's realm. Amendment IV does not let us reach the "danger to others" concern.

Nor do we reach malevolent expression. That's protected by another unambiguous red line:

"Congress shall make no law...abridging the freedom of speech".

Amendment I prevents the federal government from acting against the freedom of speech. The rarely-significant word "the" is italicized here, because "the freedom" shows the reverence America's framers had for a monumentally important, God-given right. While their purpose was propelled by Europeans' restrictions on political speech, the phrase that made it into the Bill of Rights carries no exceptions, and has come to embody the right Americans hold as most precious.

So what's the difference if the U.S. Congress restricts or 50 state legislatures individually come to similarly restrict?

A lot. First off, 50 individual state legislations would require debate, including showings of harm, the practicalities of enforcing privately, the "bleed" into restricting more "wholesome" possessions, and the wisdom of individual restrictions. Second, the different timings (following a well-publicized depravity, some will enact in a few weeks while other will take years) allows lawmakers throughout to country to gauge the benefits and harms by making state-by-state comparisons.

Third and most important, it's the sanctity of the Constitution. A federal proposal that's popular and "convenient" but Un-Constitutional needs to be stifled lest OTHER popular and convenient proposals that entail widespread hard be put forward. What Matt himself and all Constitutionalists rail about is the overreach that brought us out-of-control Medicare, ERISA, Social Security, NLRB, and Obamacare.

All good Americans want to protect children. Intentionally harming their innocence, or their outlooks is almost certainly a universal "red line" not to be crossed. But we do this with morality and not the federal government.

When the federal government gets too powerful, our morality becomes subservient to the government. That means an elected-but-"woke" crowd of lawmakers imposing their immorality upon us. 50 states with the power to impose rules are a decent protector of our morality. Still not as good as good homes, good schools, and good community religious institutions. Let THESE be our guides and not a federal force.

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Editorial submissions and replies: andrew@web4guru.com. Advertising: Mark Stewart Greenstein, libertymsg@gmail.com.

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